

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 13, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Ken Esquibel. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Dr. Aldrich moved to approve, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on November 22, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of the intersection of Old Happy Jack Road and Westland Road. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present. (#4406)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located northeast of the intersection of Old Happy Jack Road and Westland Road. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Comments were made in support of the zone change and how it will help improve blight in the area and will benefit Crow Creek and expansion of the Greenway. Motion carried. Voting “yes” – all members of the governing body present. (#4407)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR High-Density Residential to CB Community Business for land located southeast of and adjacent to the intersection of Western Hills Boulevard and Osage Avenue. Mr. Segrave declared a conflict of interest due to a business partnership with the applicant. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Segrave who did not vote. (#4408)

ORDINANCE –1st READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming, to create the definitions, ‘Functional Turf’ and ‘Non-Functional Turf’ and amending various sections of Article 6 – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, Amending Ordinance No. 4232 by modifying certain standards of the Adopted District, Planned Unit Development (PUD), for a portion of Sections 8 & 9, all of the W1/2 Section 14, a portion of the E ½ E ½ of Section 17, and all of Sections 15, 16, & 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming. (Located to the southeast of the intersection of E. College Drive and Avenue C)” – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending Ordinance No. 4396 Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2021-2022 – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Roybal and Mr. White)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant for a restroom facility in Saddle Ridge Park. Motion (per Consent Agenda) carried. (#6189)

RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing new vehicle exhaust systems for existing fire station infrastructure. Reporting for Finance Committee, Mr. Roybal advised that at the request of staff and due to the ineligibility of funding for this type of equipment under a regional grant, the item died due to the lack of a motion, therefore, there is not a recommendation on the item. Item died due to lack of a motion.

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing a new medium rescue vehicle and Rapid Intervention Team training and program development. Motion (per Consent Agenda) carried. (#6190)

RESOLUTION – Designating the allocation of WyoLotto Revenues to the City of Cheyenne be distributed to Community Recreation and Events for the purpose of construction, remediation, and completion of quality of life projects in the City of Cheyenne for a five (5) year period. Mr. Roybal moved to adopt, seconded by Mr. Cook. Mr. Roybal moved to amend by substitute dated December 13, 2021 which amends the 8th “Whereas” clause by striking “following the first quarterly receipt of WyoLotto revenues to the City in 2022” and replaces it with “July 1, 2022”, seconded by Mr. Johnson. It was explained the reason for the amendment is for alignment with the FY 2022 budget as the revenue has already been budgeted. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich, Mr.

Laybourn and Mr. Segrave voting “no”. Comments were made on the following topics: 2021 goal setting session not aligning with withdrawing funds from the general fund for the resolution, perceived poor timing of resolution and current budgetary concerns relating to the Fire Department’s overtime and payroll expenses, proposed employee raises and reinstated longevity, support for Community Recreation and Events including parks and quality of life projects, concern of using funding from the general fund for Community Recreation and Events and request to consider other funding sources for the resolution. Upon inquiry, City Treasurer Robin Lockman confirmed the amendment will utilize funding out of the 2023 FY budget. An explanation was provided by Mr. Johnson, sponsor of the resolution, noting the resolution was brought forward after the 6th penny election and that Community Recreation and Events historically has had the most cuts for projects and they typically have had low priority in project funding. Mr. Johnson commented on the Great Outdoors Colorado Parks projects, which the resolution was modeled after, and advised park related maintenance is often delayed due to lack of funding, noting the funds can be used to improve existing parks infrastructure. Further comments were made related to budget cuts regularly effecting Community Recreation and Events, the importance of maintaining and improving our parks, use of general fund dollars, success of 6th penny election which will free up funding that would have been used for the airport, replacing revenue for the resolution, concern of “earmarking” general fund dollars, importance of managing the City budget during difficult times, instances where funds were earmarked in the budget including Windfarm dollars (contractual agreement) and sanitation funds and the possibility of delaying the resolution until it is determined how the budget will look for next fiscal year. Upon inquiry, Ms. Lockman provided budget information noting the total budget for the current fiscal year is \$152,183,794 with approximately \$55 million in the general fund. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. (#6191)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Cheyenne Ice and Events Center, 4th Filing, a replat of Lots 1 and 2, P.A.S. Subdivision 1st Filing and a Portion of Lot 1, Block 1 Back 40 Subdivision First Filing situated in a portion of Section 1, Township 13 North, Range 67 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of West Lincolnway and Stinson Avenue) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Kornegay Homesites, 3rd Filing, a replat of Lots 8 through 12, inclusive, and 8’alley directly north of and adjacent to Lots 8 through 12, inclusive, Kornegay Homesites, lying within the northwest ¼ of Section 19, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northeast of the intersection of Quincy Road and Yellowstone Road) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Whitney Ranch, 5th Filing, a replat of Lot 14, Block 9 of Whitney Ranch 1st Filing situated in a portion of Section 23, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Dell Range Blvd and Gysel Place) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Designating local banks as depositories for Municipal Funds – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for the Community Development Block Grant for a covered picnic structure at Pioneer Park – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Reinstating longevity pay for eligible City of Cheyenne non-uniformed employees – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Roybal and Mr. White)

[CA] RESOLUTION – Authorizing a salary increase of one dollar and fifty cents (\$1.50) per hour to eligible employees of the City of Cheyenne – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing new lift air bag kit – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing new fire hose and nozzles – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the City Treasurer to allocate Revenue Recovery Funds for identified purposes from the U.S. Department of Treasury for the American Rescue Plan Coronavirus State and Local Fiscal Recovery Funds in the amount of \$986,645.00 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Proposing the City of Cheyenne to become the ‘Climate Wellness Capitol’ of the world by working with the Carbon Asset Network for the benefit of soil health and soil organic carbon capture – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] Telecommunications Right-of-Way License and Use Agreement between Sprint Communications Company L.P. and the City of Cheyenne. Motion (per Consent Agenda) carried. (#7455)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and West Edge Collective, LLC, for Public Engagement and Web Support Services (MPO Federal Funds) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Onsite Electronics Recycling, LLC, d/b/a I.T. Refresh, for the Electronics Recycling Services Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Purchase Agreement between the City of Cheyenne and Ned Murray Co., a Partnership, Jane D. Forbes Trustee of Jane D. Forbes Revocable Living Trust for Lots 1-9 and 14-22, Block 654, South Cheyenne Plat, City of Cheyenne, County of Laramie, State of Wyoming (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-6-22 for a contract between the City of Cheyenne and Mountain Masonry for the Airport Fountain Phase II – Terracotta Restoration (Historic Preservation Board, SHPO Grant and CTF Grant). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$68,541.00). (#7456)

[CA] Consideration to purchase between the City of Cheyenne and Motorola Solutions / Bearcom for the purchase of Motorola APX Next radios for the City of Cheyenne Police Department, and Motorola APX 1500 radios for the City of Cheyenne Public Works Department, Street and Alley Division (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (approved in an amount not to exceed \$885,168.35).

[CA] Consideration of Bid #E-5-22 for furnishing two (2) Five Gang Fairway Mowers for the City of Cheyenne, Community Recreation & Events Department-Golf Division (Golf Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-6-22 for furnishing one (1) new 2021-2022 65-foot aerial device, XT60 Pro Rear Mount Aerial Device or approved equal for the City of Cheyenne, Community Recreation & Events Department-Forestry Division (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Limited retail liquor license transfer of location application filed with the City Clerk's Office for AmVets Post 10, from 3839 E. Lincolnway to 1820 Ridge Rd., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Christmas holiday schedule, the regularly scheduled City Council meeting on Monday, December 27, 2021, will instead be held on Tuesday, December 28, 2021 at 6:00 p.m. at Storey Gym (LCSD#1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting.

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, an Emergency Procurement has been authorized by Mayor Collins for the emergency Municipal Building HVAC Duct Sealing. The emergency duct sealing has been authorized to Mighty Ducts for \$71,240.00.

Under other business:

Mayor Collins announced the recent birth of Councilman Ken Esquibel's granddaughter.

Mr. Johnson provided information on an upcoming City Council Ward III Council and Coffee event on Saturday, December 18th from 9 am - 11 am at Dazbog Coffee (3911 E. Pershing Blvd.). Mr. Johnson further noted sales of the Cheyenne Historic Preservation Board Christmas ornaments will follow the Council and Coffee event at the Depot.

Mr. White moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(iii) and §16-4-405(a)(viii), seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present. Mayor Collins advised the executive session will be held to discuss potential litigation and labor issues and announced members would meet in executive session, not open to the public; requested the City Attorney, City Clerk, City Treasurer and Fire Chief be in attendance and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: executive session convened at 6:46 p.m.).

Following closure of the executive session, Mayor Collins reconvened the regular meeting at 7:52 p.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:52 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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